

Tentative Ruling

Pelayo v. Nations Roof West, LLC
Superior Court Case No. 23CECG01236

August 11, 2026 (Dept. 501)

Report by Plaintiff Pursuant to Code of Civil Procedure Section 384, Subdivision (b)

Tentative Ruling:

To approve the report by the class settlement administrator. To direct class counsel to submit, within five days, an updated amended order granting final approval of the settlement and entering judgment which accounts for the disposition of all funds. In the future though, funds from uncashed checks should not be distributed until authorized by the court. (See Code Civ. Proc., § 384, subd. (b) ["After the report is received, the court shall amend the judgment *to direct the defendant to pay* the sum of the unpaid residue or unclaimed or abandoned class member funds ..."], emphasis added.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/10/26
(Judge's initials) (Date)

(48)

Tentative Ruling

Campos v. Singh et al.

Superior Court Case No. 25CECG01235

Hearing Date: August 11, 2026 (Dept. 501)

Motion: By Defendants and Cross-Complainants Baljeet Singh, Jagat Shakya, and Gurjeet Singh for Stakeholder Discharge, and Order to Deposit Funds

Tentative Ruling:

To deny, without prejudice. (Code Civ. Proc., §§ 386, 386.5.)

Explanation:

“When a person may be subject to conflicting claims for money or property, the person may bring an interpleader action to compel the claimants to litigate their claims among themselves.” (*City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1122.)

Code of Civil Procedure section 386, subdivision (b), applies to “[a]ny person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability.” These entities “may either file a verified cross-complaint in interpleader, admitting that it has no interest in the money or property claimed, or in only a portion thereof, and alleging that all or such portion is demanded by parties to such” or “may bring an action against the claimants to compel them to interplead and litigate their several claims.” (*Ibid.*) In either case the entity may “apply to the court upon notice to such parties for an order to deliver such money or property or such portion thereof to such person as the court shall direct.” (*Ibid.*) The deposit of the disputed portion of the money with the clerk of the court cuts off the right to further interest or damages for the retention of the funds. (Code Civ. Proc., § 386, subd. (c).)

The true test of suitability for interpleader is the stakeholder's disavowal of interest in the property sought to be interpleaded, coupled with the perceived ability of the court to resolve the entire controversy as to entitlement to that property without need for the stakeholder to be a party to the suit. (*Pacific Loan Management Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1489–1490.)

Defendants and cross-complainants, Baljeet Singh, Gurjeet Singh, and Jagat Shakya (collectively “Defendants”) filed the instant interpleader on June 29, 2026. With this motion, Defendants seek an order of discharge following its deposit of \$30,000 with the clerk of the court. Defendant also moves under Code of Civil Procedure section 386.5, to discharge the stakeholder Defendants from liability and dismissing them from the action upon depositing the \$30,000 with the clerk of the court.

Here, Defendants did not comply with the procedural requirements under Code of Civil Procedure section 386.5. In support of the motion, Defendants' counsel submits his declaration with each Defendants' declaration attached. Neither counsel's declaration, nor any of Defendants' declarations, submit that the Defendants are neutral stakeholders with no personal claim to the disputed funds as required under Code of Civil Procedure section 386.5. Also, the stated policy limit appears to be inconsistent with the policy documents provided. Defendants state that the personal injury policy limit per occurrence is \$30,000 and cites to the attachment to counsel's declaration, Exhibit A, in support. Upon reviewing the 50 pages of documents, the court was unable verify that at the time of the incident Defendants' personal injury policy limit was \$30,000. Because the declarations fail to state that Defendants are merely stakeholders and the amount to deposit is inconsistent with the evidence, the procedural requirements for an interpleader have not been met.

Further, Defendants do not appear to be mere stakeholders. The Complaint filed by Jesus Alejandro Campos, Karina Marroquin-Ramirez, and Benjamin Jacob Benavides include a negligence cause of action against Baljeet Singh as the driver and Jagat Shakya and Gurjeet Singh as the owners of the vehicle that allegedly caused the vehicle collision. The Complaint filed by Sukhvinder Singh also includes a negligence cause of action against Defendants. Defendants do not state by way of argument or declaration how the case would be able to proceed in Defendants absence where it is alleged that they are directly involved in the incident that gave rise to the action. As such, Defendants are not mere stakeholders and the instant interpleader may not be granted.

The court finds that Defendants failed to demonstrate that they are mere stakeholders, and that the interpleader is procedurally defective. The motion to order the interpleader and discharge Defendants from liability for the funds is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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